



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

January 17, 2025

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 21396
(FIRST REVISION)

EXPIRATION DATE: 2028-12-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Porsche Cars North America, Inc.
Atlanta, GA
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of damaged, defective, or recalled lithium batteries in which more than one lithium battery may be packaged per outer packaging. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.185(f)(3) in that more than one lithium battery may be packaged per outer packaging.
5. BASIS: This special permit is based on the application of Porsche Cars North America, Inc. dated June 14, 2022, submitted in accordance with § 107.105 and the public proceeding thereon and additional information dated November 30, 2022; the application dated January 17, 2023, submitted in accordance with § 107.105 and the public proceeding thereon; and the application dated November 25, 2024, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Lithium ion batteries <i>including lithium ion polymer batteries</i>	9	UN3480	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Prescribed packagings are vented and lined steel UN4A boxes certified by BAM. Packaging is as follows:

- (1) Inner Packaging: Each battery must be placed in an individual, non-metallic inner packaging that completely encloses the battery.
- (2) The inner packaging must be surrounded by cushioning material that is non-combustible, electrically non-conductive, and absorbent with heat and fire suppression properties.
- (3) Outer Packaging: Below are the outer packagings that are authorized under this special permit:
 - (i) UN4A steel box certified by BAM, the German Approval Agency, marked with UN4A/X630/S/**/D/BAM 14564-CONTEK, where ** indicates the year of manufacture, capable of holding 2 modules.
 - (ii) UN4A steel box certified by BAM, the German Approval Agency, marked with UN4A/X1652/S/**/BAM 15419-U1, where ** indicates the year of manufacture, capable of holding 8 modules.
- (4) Each package is limited to a gross weight of 630 kg (2 modules) and 1,652 kg (8 modules).
- (5) Each transport vehicle or freight container may not contain more than 25 packages.

b. OPERATIONAL CONTROLS:

- (1) Prior to being packaged for transport, the batteries must be inspected and classified as a damaged, defective, or recalled battery. Each battery must undergo a visual and thermal assessment for at least five days.
- (2) After testing and monitoring the batteries for at least five days, approved damaged, defective, or recalled batteries must be packaged in the UN4A metal boxes described above.
- (3) The packages must be loaded in the designated area (i.e., no heat sources, no high voltage areas, or high humidity).
- (4) Batteries that fail the visual or temperature check along with leaking batteries are prohibited to be transported under this special permit and must be packaged in accordance with § 173.185(f).
- (5) Batteries are limited to modules under 30 kg net mass intended for Porsche vehicles or intended for charging units for Porsche vehicle modules.

c. MARKING: Each package covered under the terms of this special permit must be durably and legibly marked and displayed on a background of contrasting color with the following:

- (1) “DOT-SP 21396”.
- (2) The words: “Batteries for Recycling or Disposal: Contains Damaged or Defective Lithium Batteries- FOR HIGHWAY, RAIL, AND CARGO VESSEL TRANSPORT ONLY – FORBIDDEN FOR TRANSPORTATION BY AIRCRAFT” in letters at least 12 mm in height.
- (3) The lithium battery mark in § 173.185(c)(3).
- (4) An emergency response telephone number in case of damage to the packaging or contents.

8. SPECIAL PROVISIONS:

- a. Under the terms of this special permit, the grantee may only offer hazardous materials (i.e., the grantee is not authorized as a carrier).

- b. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.
 - c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, and cargo vessel (see paragraph 10.b.).
10. MODAL REQUIREMENTS:
- a. A current copy of this special permit must be carried aboard each vessel or motor vehicle used to transport packages covered by this special permit.
 - b. Transportation aboard cargo vessel is only authorized when other means of transportation are impracticable.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) —“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005),

amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. **REPORTING REQUIREMENTS:** Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: CB